The examination is being carried out on the **following application documents**

Description, Pages

1-38 as published

Claims, Numbers

1-12 as published

Drawings, Sheets

1/28-28/28 as published

1 Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 2015/072097 A1 (TOBOL GRETCHEN M [US] ET AL) 12 March 2015 (2015-03-12)

D2 US 2002/135481 A1 (CONWELL KEVIN GIRARD [US] ET AL) 26 September 2002 (2002-09-26)

D3 US 2012/280043 A1 (ROSEMAN MORTON F [CA]) 8 November 2012 (2012-11-08)

D4 EP 2 991 060 A1 (SCHREINER GROUP GMBH & CO KG [DE]) 2 March 2016 (2016-03-02)

2 **Novelty of the independent claims (Art. 52(1) and 54 EPC)**

The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of **claims 1 and 9** is not new within the meaning of Article 54(1) and (2) EPC.

2.1 The subject-matter of **claim 1** is known from each of the documents **D1, D2** or **D3.**

2.1.1 **D1** discloses a disposable security and tamper evident label 304 (See par. [0001]: *"labels having identification tags and tamper evident pattern release layers"*. In particular, consider also figs. 2, 4-7 and par. [0031]-[0033]) comprising

a. a flexible adhesive transparent layer 134, 506 (Fig. 5 illustrates the transparency and flexibility of the transfer tape 506),

b. at least one EAS and/or RFID label 128, 502 attached to the flexible adhesive transparent layer (par. [0033]) and

c. at least one tamper evident label 121, 311 attached to the EAS or RFID label (Par. [0031], [0033]: Label stock 121, 311 with pattern release layer 122, 708 is coupled to the inlay or RFID tag layer 128.).

2.1.2 **D2** and **D3** are equally important to the discussion of **claim 1** as they also disclose a disposable security and tamper evident label (**D2:** par. [0018]-[0019] and figs. 3, 4; **D3:** par. [0011]-[0024]; figs. 1-3) comprising

a. a flexible adhesive transparent layer (**D2:** *clear ployester face stock with a pigmented adhesive 1A*, M3-Fig. 3; **D3:** 22-Fig. 2 and par. [0011] and [0024], transparent *"adhesive layer"*),

b. at least one EAS and/or RFID label attached to the flexible adhesive transparent layer (**D2:** 2-Figs. 3,4; **D3:** 30-Fig. 3) and

c. at least one tamper evident label attached to the EAS or RFID label (**D2:** *"VOID pattern"* appears upon tampering.; **D3:** par. [0024] and Fig. 3: *"anti-tamper label 14"* comprises RFID or EAS device.).

2.1.3 Thus, the subject-matter of **claim 1** is not new in view of each of **D1, D2** or **D3**.

2.2 As claim 1 comprises all the features of **claim 9**, the subject-matter of **claim 9** is also not new in view of each of **D1, D2** or **D3.**

3 Dependent claims

Dependent **claims 2-8** and **10-12** do not appear to contain any additional features which, in combination with the features of any claim to which they refer, meet the requirements of the EPC with respect to novelty and/or inventive step (Articles 52(1), 54(1) and (2), 56 EPC). In particular:

3.1 Article 54(1) and (2) EPC

3.1.1 Document **D1** discloses the additional features of:

- claim 2:
  Par. [0025] describes the printing of an RFID antenna (=circuit) on a *"first side 124 of the first substrate 120"* (=printable layer). Transfer tape 134 in Fig. 2 *"is a film 203 positioned between opposing layers of adhesive 204, 206"* (=double-sided adhesive);
- claims 3, 4 , 8, 10, 12:
  See Fig. 7 and par. [0033]. Both label stock 311 (=first layer) and pattern release layer 708 (=second layer) have a message imprinted. The pattern release layer constitutes a transferable adhesive which permanently adheres to a container 602 (=fusing to a product) showing the printed message;

Therefore, the subject-matter of **claims 2-4, 8, 10** and **12** is not new in view of **D1**.

3.1.2 Document **D2** discloses the additional features of claim 2, see par. [0020]-[0021] and Fig. 5.

Therefore, the subject-matter of **claim 2** is not new in view of **D2**.

3.1.3 Document **D3** discloses the additional features of claims 3, 4 and 10, see fig. 4 and par. [0025] - [0026], which describe the core 20 comprising two layers 20 a and 20 b with *"indicia"* printed on both layers. The adhesive layer 22 is transferable to the merchandise item 10 as shown in fig. 1;

Therefore, the subject-matter of **claims 3, 4** and **10** is not new in view of **D3**.

3.2 Article 56 EPC

3.2.1 Claims 5, 6, 7 and 11:
The transparent label including a positioning pull-tag with a precut area to allow detachment of the pull-tag is an obvious design in the field of adhesive label tags as exemplified by **D4**. See in particular par. [0034] with fig. 4, where positioning tag 11b (*"Anfasslasche zur besseren Positionierung")* is detachable from label 12 supported by perforations 13 and 23.

Therefore, the subject-matter of **claims 5, 6, 7 and 11** does not involve an inventive step with respect to a combination of each of **D1, D2** or **D3,** respectively, with **D4.**

4 **Clarity (Art. 84 EPC)**

The application does not meet the requirements of Article 84 EPC, because **claims 1, 5-7, 9, 11** and **12** are not clear.

4.1 **Claims 1** and **9** have been drafted as separate independent claims. Under Art 84 in combination with Rule 43(2) EPC, an application may contain more than one independent claim in a particular category only if the subject-matter claimed falls within one or more of the exceptional situations set out in paragraph(a), (b) or (c) of Rule 43(2) EPC. This is not the case in the present application. Thus **claims 1** and **9** lack conciseness.

Moreover, **claim 1** contains all features of **claim 9** and, thus, should be reformulated as a claim dependent on claim 9 (see Rule 43(4) EPC and GL F-IV, 3.4).

4.2 Furthermore, the following terms lack an antecedent and therefore clarity:

- "the flexible adhesive transparent label" in **claims 5, 7** and **11**;
- "the position pull-tag" in **claim 6;**
- "the EAS or RFID label" in **claim 9;**
- "the transferable adhesive", "the second layer", "the printed message and/ or QR code" in **claim 12** have no antecedent in claim 11.

5 **In addition the following requirements need to be fulfilled:**

5.1 To meet the requirements of Rule 42(1)(b) EPC, documents **D1- D4** should be identified in the description and the relevant background art disclosed therein should be briefly discussed.

5.2 Any independent claim should be drafted in two-part form with those features known from the prior art being placed in the preamble (R. 43(1)(a) EPC) and with the remaining features being included in the characterising part (R. 43(1)(b) EPC).

5.3 The term "incorporated by reference" in par. [0001] and [0003] of the application should be deleted from the description (see Guidelines, F-III, 8).

5.4 The statement "are not intended to be exhaustive or to unnecessarily limit the scope of the invention" in par. [0087] of the description implies that the subject-matter for which protection is sought may be different to that defined by the claims, thereby resulting in a lack of clarity of the claims (Article 84 EPC) when the description is used to interpret the claims (see EPC Guidelines F-IV, 4.4). This statement should therefore be amended to remove this inconsistency.

5.5 The description must be brought into conformity with the new claims to be filed. In particular, the applicant should amend the description as needed to fulfil the following requirements:

a. The technical field and the summary of the invention must correspond to the amended set of claims. If appropriate, it is possible to use statements like "the invention is set out in the appended set of claims" instead of repeating the claims verbatim (Rule 42(1)(a), GL F-II, 4.2).

b. All embodiments which are not covered by the claims anymore must be deleted, unless these embodiments can reasonably be considered to be useful for highlighting specific aspects of the amended subject-matter. In such case, they must be prominently marked as not being part of the present invention (GL F-IV, 4.3).

c. All technical features of the independent claims shall not be presented as optional in the description. Terms such as “for example“, “may“, “can”, “exemplary“, “optionally“, “preferably“ and the like should be removed when preceding a feature of an independent claim.

5.6 The applicant should pay attention not to contravene Article 123(2) EPC when amending the application.
In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, with respect to the original claims and to indicate the passages of the application as filed on which these amendments are based.
The applicant is reminded that, in case the amendments are directed to a combination of claims/features not originally defined in the claims, the basis should be provided on the basis of the original description. In case the claims define intermediate generalisations of originally disclosed embodiments, the applicant is requested to provide arguments of why these intermediate generalisations are allowable. Allowable intermediate generalisations must satisfy both the following conditions: (i) a feature removed from an embodiment is not related or inextricably linked to the other features of that embodiment; and

(ii) the overall disclosure justifies the generalising isolation of the feature and its introduction into the claim. (GL H-V, 3.2.1). Claims (including dependent claims) for which these conditions do not apply should be avoided.